TUAS LIMITED (ASX: TUA) REGULATORY NOTICE · TELECOMMUNICATIONS · SINGAPORE

Singapore regulator issues show cause notice to Tuas subsidiary Simba

On 26 October 2026 Tuas told the ASX that Simba Telecom, its wholly owned Singapore subsidiary, received a Notice to Show Cause from the Infocomm Media Development Authority (IMDA) at about 7:30pm Sydney time on Friday 23 October. The IMDA wants to know why it should not make certain findings against Simba. The notice lists allegations, but the IMDA has not reached a conclusion and Tuas says no findings have been made or confirmed.

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Allegations
Simba has been asked to respond to each

16 Nov

Response due
Simba intends to respond by 16 November 2026

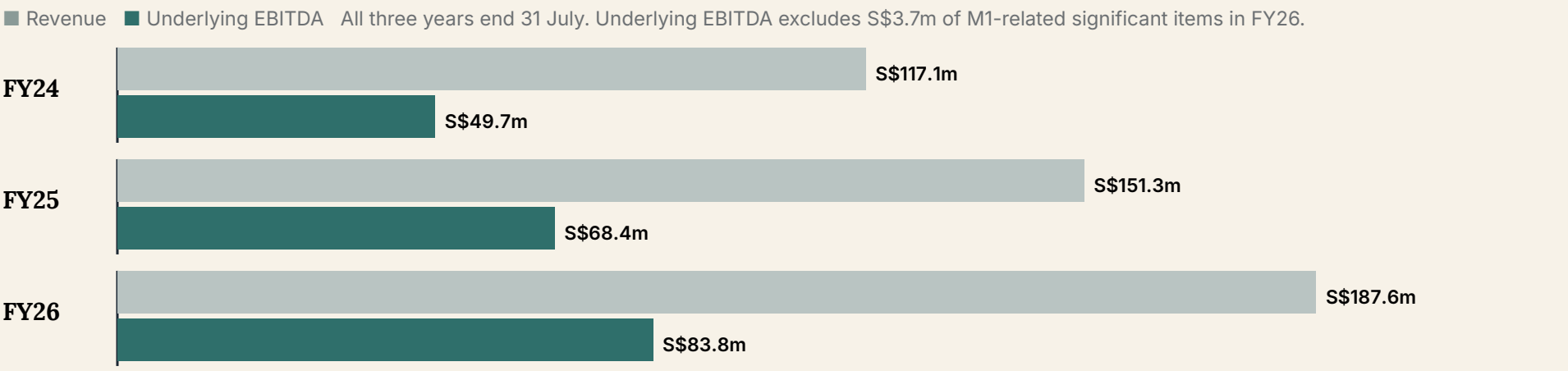
S$187.6m

FY26 revenue, up 24%
Year to 31 Jul 2026, before the notice

WHAT THE IMDA HAS ALLEGED (ALLEGATIONS ONLY, NOT FINDINGS)

1. Dynamic spectrum sharing on about 133 sites, for intermittent periods in 2022 and 2023, letting the 2100 MHz band carry 4G as well as 5G when Simba was authorised for 5G only on that band.
2. Use of 2340-2360 MHz spectrum at about 92 sites, for intermittent periods between 2023 and 2026, without authorisation.
3. That items 1 and 2 were intentional and approved by Simba senior management.
4. 5G indoor radio equipment deployed at two locations in 2023 before IMDA authorisation, which was not given until 14 November 2023.
5. Alleged non-compliance with an IMDA production order, with the failure to produce documents alleged to be deliberate and intentional.
6. IMDA concerns about deficiencies in Simba's governance and compliance culture, which the IMDA considers should lead to further licence obligations.

THE BUSINESS BEHIND THE NOTICE: REVENUE AND UNDERLYING EBITDA (S$M)



What Tuas does. Tuas is an ASX-listed company whose core business is Simba, a Singapore mobile and fibre broadband operator. At 31 July 2026 it reported about 1,458,000 active mobile services and about 62,000 broadband subscriptions.

Sources: Tuas Limited, "IMDA Issues Show Cause Notice", ASX 26 Oct 2026; Appendix 4E and Annual Report FY26, ASX 23 Sep 2026; FY26 Results Presentation, ASX 23 Sep 2026; FY25 Appendix 4E, ASX. FY24 and FY25 are as reported. Share-price data is not included in this report. All figures are Singapore dollars (S$).

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Why it matters: a wide range of possible outcomes, none decided

WHAT THE IMDA HAS SAID IT COULD DO

The IMDA has not decided whether to act. It has asked Simba to explain why it should not take these steps:

Spectrum (Regulation 16(2)). Suspend or cancel the spectrum right or part of it, and/or require a financial penalty.

Licence (section 10, Telecommunications Act). Issue a written order to secure compliance, require a financial penalty and, in certain circumstances, cancel or suspend a licence or part of it, or shorten its term.

Further obligations. Impose modified licence conditions or directions to address governance deficiencies.

Penalty cap. The higher of 10% of the annual turnover of the relevant part of the business (from the latest audited accounts) or $1 million. The notice does not state the currency, and the relevant turnover is not disclosed, so no dollar maximum can be stated.

TIMELINE

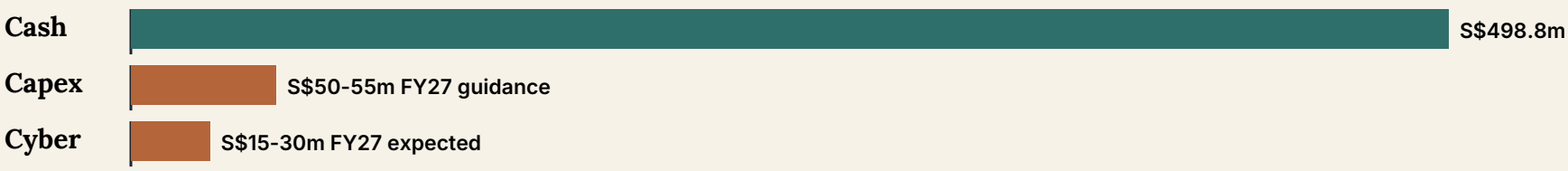
11 Aug 2025	Simba agrees to buy M1 (enterprise value S$1,430m, excluding ICT).
17 May 2026	IMDA suspends its review of the deal (announced 18 May).
21 May 2026	Long-stop date passes; SPA terminated (announced 22 May).
23 Sep 2026	FY26 results: revenue up 24%, underlying EBITDA up 22%.
23 Oct 2026	Simba receives the show cause notice.
16 Nov 2026	Simba's response is due.

WHAT HAS CHANGED SINCE SEPTEMBER

On 23 September Tuas described "intermittent use of some spectrum that Simba had previously been authorised to use". The 26 October notice adds allegations of use of a band Simba was not authorised to use, intent, senior management approval and production order non-compliance. These are allegations. Tuas says it does not intend to comment further while the matter is with the regulator.

THE NUMBERS AROUND IT (COMPANY FIGURES, S$)

FY26 revenue grew 24.0% to S$187.6m and underlying EBITDA grew 22% to S$83.8m, a margin of about 45% (S$83.791m / S$187.624m = 44.7%). Statutory profit after tax was S$26.0m, up from S$6.9m. Cash was S$498.8m at 31 July 2026, after S$364.5m gross (S$359.8m net of costs) was raised for the M1 deal that lapsed. As at 23 September the Board had made no decision on use of that capital. The 26 October notice does not update this. FY27: mobile and broadband capex guidance of S$50-55m, and incremental cyber security spend expected at S$15-30m.



Bars for ranges are drawn at the top of each range. Cash is as at 31 July 2026. Not a forecast of how cash will be used.

WHAT TO WATCH

Simba's response due 16 November 2026 · Any IMDA decision on findings, penalties or licence conditions · Further ASX updates from Tuas · How the Board uses the raised capital · FY27 cyber and capex costs against the S$15-30m and S$50-55m figures · Whether the matter affects customers or trading, which Tuas has not disclosed

TAR TAKE (OUR INTERPRETATION)

The FY26 results show a growing, profitable operator with a strong cash position, but they pre-date this notice. The notice turns a known investigation into a defined process with a stated list of possible outcomes, from further licence conditions to spectrum or licence action. Nothing has been decided, the size of any penalty cannot be worked out from the announcement, and the timing is open. Until the IMDA responds, the key question is not last year's growth but which outcome applies.

Sources: Tuas Limited, "IMDA Issues Show Cause Notice", ASX 26 Oct 2026; "IMDA suspends review of consolidation application", ASX 18 May 2026; "Termination of M1 Sale and Purchase Agreement", ASX 22 May 2026; Appendix 4E and Annual Report FY26 and FY26 Results Presentation, ASX 23 Sep 2026; FY25 Appendix 4E. Share-price data is not included. Figures in S$ unless stated.

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